



Could ruling in Utah case set precedent for Nevada to take ownership of public land?



Utah Gov. Spencer Cox talks with media Aug. 20 after a press conference to announce state action for Utah public lands at the Capitol in Salt Lake City. Photo by: Jeffrey D. Allred/The Deseret News via AP / Associated Press

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A billboard in support of Utah's lawsuit challenging federal control over Bureau of Land Management land in the state hangs over Interstate 15 from Las Vegas to Salt Lake City.

The sign, which is part of a \$500,000 marketing campaign, is designed to increase awareness about federal oversight. They say, "Stand for our Land," and "Let Utah manage Utah land."

It's an ongoing rallying cry for Utah leaders, who for decades have tried to exert control over U.S. Bureau of Land Management land that makes up about 70% of the state.

The latest attempt: Utah's attorney general in August filed a lawsuit with the U.S. Supreme Court targeting 29,000 square miles (18.5 million acres) managed by BLM and used for energy production, mining and recreation.

State officials say the federal government can't indefinitely hold onto land without giving it a designation. And because of the federal stronghold, the state can't profit off projects the land could be used for, they said.

"Utah cannot manage, police or care for more than two-thirds of its own territory because it's controlled by people who don't live in Utah, who aren't elected by Utah citizens and (are) not responsive to our local needs," the state's Attorney General Sean Reyes said in a statement.

Late last month, 10 states threw their support behind Utah's efforts, signing amicus briefs with the Supreme Court supporting Utah's efforts.

Idaho Attorney General Raúl Labrador said the government's control of unappropriated land curtails state sovereignty, according to the Idaho Capital Sun. Other states in support include Alaska, Wyoming, Iowa, Mississippi, Nebraska, North Dakota, South Carolina, South Dakota and Texas.

In Nevada, Utah's lawsuit is supported by Lincoln, Elko and Lander counties, according to the filing from the American Lands Council.

In Elko County, some argue there have been BLM delays in land management decisions that affected development in the county, said Bertha Gutierrez, the program director at the Conservation Lands Foundation.

Out of the 2.3 million acres of federal land in the county, some is federally managed land used for exploration of nonfuel minerals, meaning those delays can affect nearly 50% of the project's value, the National Mining Association estimated in 2018, according to an Elko County filing to the Nevada Legislature. The permitting process could take seven to 10 years.

"This goes beyond just conservation groups," Gutierrez said. "This affects anybody that interacts with America's public lands."

Millions of acres across the West at risk of privatization

Utah's court case can have an impact on public lands across the West, said Michael Carroll, BLM campaign director at the Wilderness Society. Based on Utah's definition of unappropriated lands,

the society estimated that 210 million acres across the West, with 41 million out of 48 million acres in Nevada, are at risk of privatization.

If the Supreme Court were to side with Utah, it would set a precedent for other states to take ownership of public land.

When states joined the Union, they surrendered the right to their land, Carroll said. Another problem with this lawsuit is that it's open-ended in terms of who gets the land when it gets sold off.

"We think (that's) by design because ultimately the end goal is that the state of Utah (has plans) for privatization of these lands," Carroll said.

Determinations on how to deal with federal public lands, whether it be land disposal or change in land management or ownership, go through Congress and people can provide public comment, Carroll said. But since the lawsuit is being filed with the U.S. Supreme Court, public comment is cut out.

"Just because it's physically within their state's boundaries doesn't give them any ownership over it," said Shaaron Netherton, executive director at Friends of Nevada Wilderness. "Those lands belong to all of us."

Land managed by the BLM is governed by the Federal Land Policy and Management Act of 1976 that gives Congress the power to declare public lands be retained by the federal government, Netherton said.

However, to avoid lawsuits like Utah's, one of the best things for public lands across the West is to fund the BLM so it can update land use plans, Netherton said. In Nevada, land use management acts date back to the 1800s.

"There's a lot of stuff happening now that the BLM needs to work with everybody to redo land use plans and incorporate all the challenges that we're facing now," Netherton said.

The Southern Nevada Public Lands Management Act allows for the sale of land in the Las Vegas area, Netherton said.

In 2023, BLM proposed a guide to balance the management of public lands under the Public Lands Rules. Under the rule, the BLM would build and maintain the resilience of public lands by conserving landscapes, restoring degraded habitat and ecosystems and making management decisions across all plans and programs.

If the Supreme Court were to rule in favor of Utah's lawsuit, the state, and states across the West, would need to figure out what to do with the land, Netherton said. Public land across the West has

grazing permits that would have to be managed differently. Same with leases on oil, gas and solar facilities.

“There’s no guidance on that,” Netherton said. “What would happen would be utter chaos.”

It’s important to continue and have partnerships between federal and local agencies, Netherton said.

Friends for Wilderness Nevada works with the U.S. Forest Service to maintain hiking and equestrian trails, and hire people for projects such as removing fences for wildlife.

Netherton credits the public lands bill for Nevada being able to successfully balance local development, like housing, and conservation, because the federal government manages so much of the state’s land. Congress works with local leaders, stakeholders and landowners to address conservation and development.

“That’s the path that makes the most sense,” Netherton said. “Land use planning and Congress are the answer to those questions.”

Some communities in Nevada are landlocked as they expand, but land should still be available for community development like new water treatment facilities and flood areas, Netherton said.

When Nevada was created as a state, it was not offered many land grants, which is why land is managed by federal agencies, Gutierrez said. Any time there is a need to use land for housing, it goes through Congress.

“Working with the communities to find ways to help them is critical,” Netherton said. “If they can’t get some relief and help on that, then they get very bitter, they get angry.”

The Southern Nevada Public Land Management Act provides a framework for the sale and development of federal lands to address local needs like affordable housing, while generating revenue for conservation projects, U.S. Rep. Steven Horsford, D-Nev., said in an email to the Sun. This approach has allowed Nevada to address issues in the community while also protecting public lands.

“We need to adopt a multifaceted strategy to achieve more affordable housing in Southern Nevada while respecting land conservation,” Horsford said. “This includes prioritizing using available federal lands.”

There is a proposal in Spring Valley near Great Basin National Park for the Bahsahwahbee National Monument, which is considered unappropriated land under the lawsuit, that is at risk, said Jose Witt, the Nevada state director at the Wilderness Society. This area is a sacred site for the tribes in the area.

“There’s other very wild places where it’s really important for the connectivity of wildlife,” Witt said. “If the Bureau of Land Management ... can’t manage these places properly for wildlife, we’ll lose a lot of (it).”

For states like Utah that don’t like how public lands have been managed, they should work with the BLM and federal land management agencies, like the National Parks Service and tribes, to include different ideas and management practices, Carroll said. States should also secure funding and resources for federal agencies to properly manage the land.

“If we want our public lands managed well for future generations, for our wildlife, for our recreation resources, for green energy, we need to have people on the ground to do the management,” Netherton said.

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